

Calendar Line 1**Case Name:** Northeast Securities v. Wenbin et al.**Case No.:** 23CV420300**PROPOSED INTERVENOR LIHUA SONG'S MOTION FOR LEAVE TO INTERVENE**

Proposed intervenor Lihua Song seeks leave to intervene pursuant to California Code of Civil Procedure section 387(d)(1)(B). Song is a judgment creditor of defendant Wenbin Que, holding a final federal judgment confirming an arbitration award. This action, filed by plaintiff Northeast Securities Co., Ltd., seeks to avoid allegedly fraudulent transfers under California's Uniform Voidable Transactions Act involving three California real properties. Song contends that disposition of this action may impair her ability to enforce her judgment.

On February 6, 2026, three days after Song filed this motion, defendant Xiaolan He filed a Chapter 7 bankruptcy petition. The parties (other than Song) agreed to stay this action pending resolution of the bankruptcy.

LEGAL STANDARD

Code of Civil Procedure section 387(d)(1)(B) provides for mandatory intervention when a nonparty claims an interest relating to the property or transaction that is the subject of the action, is so situated that disposition may impair or impede that person's ability to protect that interest, and the interest is not adequately represented by existing parties. Cal Code Civ Proc § 387.

To establish mandatory intervention, Song must demonstrate: (1) a timely application; (2) an interest relating to the property or transaction at issue; (3) that disposition may impair or impede her ability to protect that interest; and (4) that her interest is not adequately represented by existing parties.

For permissive intervention under section 387(d)(2), the court exercises discretion considering: (1) proper procedures; (2) direct and immediate interest; (3) whether intervention will enlarge the issues; and (4) whether reasons for intervention outweigh opposition.

ANALYSIS**A. Timeliness**

Timeliness is measured from when the proposed intervenor knew or should have known their interests were not being adequately protected, not from when they learned of the litigation. *Ziani Homeowners Assn. v. Brookfield Ziani LLC* (2015) 243 Cal.App.4th 274, 282.

Song's motion is untimely. Plaintiff filed this action on August 3, 2023, challenging the same April 2023 deeds of trust and California properties that Song subsequently targeted in her own federal attachment motion filed October 12, 2023. Song's federal motion discussed the

identical transfers, identified defendant Lin, and provided the same background regarding Lin's business relationship with the judgment debtors—all matters alleged in plaintiff's complaint.

Plaintiff recorded Notices of Pendency of Action against all three California properties on September 8, 2023, providing constructive notice. Yet Song waited until January 14, 2026—more than two years—to seek intervention.

The complaint has remained substantively unchanged since filing. Song's vague assertion that intervention "became clear" as the action "progressed" is insufficient when the record establishes she knew of the challenged transactions by October 2023. The most important consideration is prejudice caused by delay, and here the delay exceeds two years despite Song's early knowledge. *Truck Ins. Exchange v. Superior Court* (1997) 60 Cal.App.4th 342, 351.

B. Lack of Direct and Immediate Interest

Song lacks the direct and immediate interest required for intervention. Her interest is that of a competing creditor seeking to collect from the same debtor—precisely the type of consequential interest California courts consistently hold insufficient. *City and County of San Francisco v. State of California*, (2005)128 Cal. App. 4th 1030, 1037.

An interest is consequential when the action does not directly affect it, although results may indirectly benefit or harm its owner. "An unsecured creditor of a defendant who will be rendered unable to pay the debt if he loses a lawsuit is held to only have a consequential interest not justifying intervention." *Fireman's Fund Ins. Co. v. Gerlach* (1976) 56 Cal. App. 3d 299, 303.

Song holds a separate judgment against Que arising from an entirely different 2014 transaction. Plaintiff holds its own judgment based on separate 2016 equity repurchase agreements. Both creditors seek to enforce their respective judgments against assets allegedly transferred by the common debtor. The fact that both target the same California properties does not transform Song's consequential interest into a direct one.

Any judgment determining the validity of the challenged transfers will affect Song only indirectly by potentially reducing or enlarging the pool of available assets. This is the hallmark of a consequential interest.

C. No Impairment of Ability to Protect Interests

Song cannot demonstrate that disposition of this action will impair her ability to protect her interests. Even if plaintiff prevails and the challenged transfers are avoided, Song retains all enforcement rights. She can pursue her own UVTA claims, obtain judgment liens, levy on assets, and pursue any other remedy available to a judgment creditor.

Conversely, if Plaintiff does not prevail, Song is not bound by that result under principles of res judicata or collateral estoppel. The standard asks whether disposition will, as a practical matter, impair the intervenor's ability to protect that interest. *Hodge v. Kirkpatrick Development, Inc.* (2005) 130 Cal. App. 4th 540, 555. Song points to no such practical

impairment. Her enforcement rights exist independently and will continue regardless of this litigation's outcome.

D. Permissive Intervention Also Fails

Permissive intervention requires consideration of whether intervention will enlarge the issues and whether reasons for intervention outweigh opposition. *South Coast Air Quality Management Dist. v. City of Los Angeles* (2021); 71 Cal.App.5th 314, 325; *Reliance Ins. Co. v. Superior Court* (2000) 84 Cal.App.4th 383, 386.

Song's proposed complaint would substantially expand this action by injecting her separate 2014 agreement, 2021 arbitration award, federal confirmation proceedings, and distinct \$52 million-plus judgment. This would require the parties to address the validity and enforceability of Song's separate arbitration award and federal judgment, the merits of her independent UFTA claims, priority disputes between creditors, and Song's request for multiple forms of relief.

This expansion creates substantial prejudice. Written discovery is substantially complete. The action has been stayed pending defendant He's bankruptcy proceedings. Song's two-year delay compounds this prejudice.

Judicial efficiency is not served by consolidating separate creditor enforcement actions with distinct judgments, claims, and remedies simply because they target overlapping assets. Song's independent remedies remain available without burdening this litigation.

DISPOSITION

Song has failed to establish a right to mandatory intervention. Her motion is untimely, she lacks a direct and immediate interest, her ability to protect her interests will not be impaired, and her interests are adequately represented by plaintiff to the extent they overlap. Permissive intervention is likewise inappropriate. Intervention would substantially enlarge the litigation, prejudice existing parties who have substantially completed discovery and are subject to a bankruptcy stay, and would not serve judicial efficiency given Song's available independent remedies.

Accordingly, the motion to intervene is DENIED.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020 within 7 days of the hearing.

Calendar Line 8**Case Name:** *Richard Chamberlain v. Jason Chamberlain***Case No.:** 25-CV-457483

Motion for New Trial by Plaintiff Richard Chamberlain

Factual and Procedural Background

This is an action for defamation and related claims brought by plaintiff Richard Chamberlain (“Plaintiff”) against his brother, defendant Jason Chamberlain (“Defendant”). Both parties are acting as self-represented litigants.

According to the first amended complaint (“FAC”), in 2000, Defendant engaged in wrongful conduct involving Plaintiff’s then girlfriend. (FAC at ¶ 7.) Thereafter, Defendant made repeated false statements to family members and others, using this incident as a basis to defame Plaintiff. (Ibid.)

Over the years, Defendant repeated false statements portraying Plaintiff as dishonest, delusional, and threatening. (FAC at ¶ 11.) These statements were understood as assertions of fact and tended to injure Plaintiff’s reputation in the eyes of family members, neighbors, and community witnesses. (Ibid.)

On January 27, 2025, Plaintiff filed a complaint against Defendant alleging a single cause of action for defamation.

On November 3, 2025, Plaintiff filed the operative FAC against Defendant asserting causes of action for: (1) defamation per se; (2) defamation (general); (3) intentional infliction of emotional distress; and (4) false light.

On February 23, 2026, Defendant filed a motion for summary judgment, or in the alternative, summary adjudication to the FAC. Plaintiff filed written opposition. The motion was heard and submitted on May 8, 2026. Thereafter, this court filed an order granting Defendant’s motion for summary judgment.

On May 29, 2026, Plaintiff filed notice of his intention to move for a new trial, now the present motion before the court.¹ Defendant filed written opposition. Plaintiff filed reply papers.

Self-Represented Litigants

Self-represented litigants “are held to the same standards as attorneys.” (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 [“self-represented litigants are generally entitled to no special treatment”].) “[M]ere self-representation is not a ground for exceptionally lenient treatment.”

¹ Plaintiff filed his initial memorandum of points and authorities in support of the motion for new trial on June 11, 2026. Thereafter, Plaintiff filed a “revised supplemental” memorandum of points and authorities in support of the motion for new trial on June 15, 2026.

(*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, “exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.” (*Id.* at p. 985.)

Motion for New Trial

Plaintiff moves for a new trial on the following grounds: (1) irregularity in the proceedings (Code Civ. Proc., § 657(1)); (2) accident or surprise (Code Civ. Proc., § 657(3)); (3) decision is against the law (Code Civ. Proc., § 657(6).); and (4) triable issues of material fact exist.²

Legal Standard

“A motion for summary judgment is to be granted ‘if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.’ [Citation.]” (*Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1103.)

“ ‘A motion for new trial is appropriate following an order granting summary judgment.’ [Citation.] ‘The new trial motion may seek reversal of the summary judgment on “any available statutory ground for a new trial.” ’ [Citation.]” (*Braganza v. Albertson’s LLC* (2021) 67 Cal.App.5th 144, 159.)

“The authority of a trial court in this state to grant a new trial is established and circumscribed by statute. [Citation.] [Code of Civil Procedure] Section 657 sets out seven grounds for such a motion: (1) ‘Irregularity in the proceedings’; (2) ‘Misconduct of the jury’; (3) ‘Accident or surprise’; (4) ‘Newly discovered evidence’; (5) ‘Excessive or inadequate damages’; (6) ‘Insufficiency of the evidence’; and (7) ‘Error in law.’ ” (*Oakland Raiders v. National Football League* (2007) 41 Cal.4th 624, 633.)

“This right to move for a new trial is a creature of statute and the procedure prescribed by law must be closely followed. [Citations.] Strict construction of the statute ensures protection of the litigant’s rights. [Citation.] Accordingly, the motion for new trial can only be granted on a ground specified in the notice of intention to move for a new trial. [Citations.]” (*Wagner v. Singleton* (1982) 133 Cal.App.3d 69, 72.)

When the trial court “grants a motion for new trial, ‘the court shall specify the ground or grounds upon which it is granted and the court’s reason or reasons for granting the new trial upon each ground stated.’ [Citations.]” (*Johnson v. Monsanto Co.* (2020) 52 Cal.App.5th 434, 461.)

Irregularity in the Proceedings

“A new trial may be granted where there is an ‘[i]rregularity in the proceedings.’ [Citation.] An ‘irregularity in the proceedings’ is a catchall phrase referring to any act that (1) violates the right of a party to a fair trial and (2) which a party ‘cannot fully present by exceptions taken during the progress of the trial, and which must therefore appear by affidavits.’ [Citations.]” (*Montoya v. Barragan* (2013) 220 Cal.App.4th 1215, 1229-1230.)

² In reply, Plaintiff clarified that he is not seeking a new trial on the ground of “decision against law” as it was not raised in his notice of intent. Instead, this point is incorporated with his discussion under “irregularity in the proceedings.”

Plaintiff contends there was an irregularity in the proceedings as Defendant obstructed discovery while the motion for summary judgment was pending. To counter this obstruction, Plaintiff filed discovery motions that were scheduled for hearing sometime after the motion for summary judgment. Plaintiff appears to suggest that, had his discovery motions been heard prior to the motion for summary judgment, he would have been able to raise a triable issue of fact with respect to his defamation lawsuit. The court however is not persuaded as Plaintiff's remedy was to seek a request to continue the motion for summary judgment under the guidelines set forth in Code of Civil Procedure section 437c, subdivision (h) to allow his discovery motions to be heard and to obtain necessary discovery before the court could rule on Defendant's dispositive motion. But, as stated in the court's summary judgment order, Plaintiff did not make such request in his opposition to the motion for summary judgment or articulate how any such discovery would raise a triable issue of fact to defeat the motion. The court thus finds there is no perceived irregularity in the proceedings to justify granting a motion for new trial.

Accident or Surprise

The terms "accident" and "surprise," as used in Code of Civil Procedure, section 657, are given substantially the same meaning. (*Kauffman v. De Mutiis* (1948) 31 Cal.2d 429, 432; *South Santa Clara Valley Water Conservation Dist. v. Johnson* (1964) 231 Cal.App.2d 388, 406 (*South Santa Clara Valley*).) A court may grant a new trial based on accident or surprise that the moving party could not have guarded against by exercising ordinary prudence. (Code Civ. Proc., § 657(3).) As one California appellate court explained:

“ ‘Surprise’ as a ground for a new trial denotes some condition or a situation in which a party to an action is unexpectedly placed to his detriment. The condition or situation must have been such that ordinary prudence on the part of the person claiming surprise could not have guarded against and prevented it. Such party must not have been negligent in the circumstances. [Citations.]” (*Wade v. De Bernardi* (1970) 4 Cal.App.3d 967, 971.)

“The granting or denial of a motion for new trial on the ground of surprise is largely a matter of discretion.” (*South Santa Clara Valley, supra*, 231 Cal.App.2d at p. 407.)

Plaintiff argues the court's order granting summary judgment constituted "surprise" as it instantly mooted his pending discovery motions. This argument however is unavailing as Plaintiff had an opportunity to guard against this outcome by either submitting admissible evidence in support of his opposition to the motion for summary judgment or seeking a continuance of that motion under Code of Civil Procedure section 437c, subdivision (h). Plaintiff did neither and thus failed to exercise ordinary prudence that could have guarded against the granting of Defendant's motion for summary judgment. Nor can it be said that the mooting of the discovery motions was "unexpected" as that is the logical consequence of a trial court order granting a motion for summary judgment and thus disposing of the lawsuit. (See *Ahern v. Dillenback* (1991) 1 Cal.App.4th 36, 41 [purpose of summary judgment is to expedite litigation by avoiding needless trials].) Therefore, the court declines to exercise its discretion to grant a motion for new trial based on accident or surprise.

Triable Issues of Material Fact

“The new trial motion may seek reversal of the summary judgment on the ground that there are triable issues of fact.” (*Doe v. United Air Lines, Inc.* (2008) 160 Cal.App.4th 1500, 1504-1505.)

As a final point, Plaintiff asserts that triable issues of fact remain to be decided in the case. In support, Plaintiff relies on a “Corrected Separate Statement” that disputes material facts raised by Defendant’s motion for summary judgment. (See Plaintiff’s Decl. at Ex. C.) But, by Plaintiff’s own admission, the “supposed” triable issues of fact rely on evidence (i.e., the suppressed native records and admissions) that has not been produced in discovery and is not before the court for purposes of this motion. (Id. at ¶ 6.) And evidence that constitutes a triable issue of material fact cannot be derived from speculation, guesswork or mere possibilities. (See *Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481 [party opposing summary judgment cannot establish triable issue with evidence based on speculation, guesswork or mere possibilities]; see also *Pipitone v. Williams* (2016) 244 Cal.App.4th 1437, 1453 [“A triable issue of fact can only be created by a conflict of evidence, not speculation or conjecture.”].)

Consequently, the motion for new trial is DENIED. Having denied the motion, the court declines to consider Plaintiff’s omnibus motion, filed on July 10, 2026, for restoration and scheduling of discovery matters.

Disposition

The motion for new trial is DENIED.

The court will prepare the order.

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Calendar line 9

Case Name: *Onemail Financial, LLC v. Mario Melendez Castro*

Case No.: 25CV459816

Defendant's Motion for Reconsideration to Set Aside Default

The Court recognizes that a motion for reconsideration ordinarily requires a showing of new or different facts, circumstances, or law. (CCP § 1008.) The Court also notes that no default judgment has been entered and California law strongly favors resolution of actions on their merits whenever possible.

Defendant disputes the circumstances surrounding substitute service on March 13, 2025 and asserts he did not receive actual notice of the action until by mail on July 25, 2025, at which time he promptly contacted Plaintiff's counsel. Defendant further contends that the descriptions contained in the proof of service do not match the individuals allegedly served and disputes statements regarding his whereabouts at the time of service.

While the Court recognizes Plaintiff's cited authority and the prima facie validity of service pursuant to CCP 415.20, Defendant's contentions raise a sufficient question regarding Defendant's actual notice of the action.

The Court finds that setting aside the default at this stage will permit adjudication on the merits and will not result in substantial prejudice to Plaintiff beyond the delay inherent in litigation. By contrast, denial of relief would likely result in disposition of the action without a determination on the merits. Under these circumstances, and in light of the strong policy favoring resolution of cases on their merits, the Court exercises its discretion pursuant to CCP section 473(b) to grant relief from default.

Accordingly,

Defendant's motion is GRANTED. The entry of default entered against Defendant is VACATED. Defendant shall file and serve a responsive pleading within 14 days of service of the notice of entry of this order.